

Smt Komal Hotkar vs Sri Kirankumar Sherkhane on 17 August, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:29145
CP No. 246 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 17TH DAY OF AUGUST, 2023

BEFORE
THE HON'BLE MR JUSTICE S.G.PANDIT
CIVIL PETITION NO. 246 OF 2023

BETWEEN:

SMT. KOMAL HOTKAR
W/O KIRANKUMAR KITTUR ALIAS SHERAKHANE,
D/O YASHVANT HOTKAR,
AGED 25 YEARS,
R/AT NO.102, BASAPPA LINE,
BSA ROAD, FRAZER TOWN,
BENGALURU-560005.

...PETITIONER

(BY SRI. RAKESHA T.M., ADV. FOR
SRI GIRIDHAR H., ADV.)

AND:

SRI KIRANKUMAR SHERKHANE
S/O NAGAPPA KITTUR,
AGED 27 YEARS,
R/AT GANDHINAGAR,

Digitally signed by
CHAYA S A
Location: High Court
of Karnataka

KALAGHATAGI,
TALUK: KHALAGHATAGI,
DHARWAD -581204.

...RESPONDENT

(BY SMT. MAHALAKSHMI D. N., ADV. (ABSENT))

THIS PETITION IS FILED UNDER SECTION 24(1) OF THE CPC 1908, PRAYING TO PASS AN ORDER TO TRANSFER THE PROCEEDINGS IN M.C.NO. 14/2023 FROM THE FILE OF THE ON THE FILE OF THE COURT OF THE LEARNED SENIOR CIVIL JUDGE AND JMFC AT KALGHATGI TO PRL. JUDGE FAMILY COURT AT BANGALORE, IN THE INTEREST OF JUSTICE AND ETC.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

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ORDER

Heard the learned counsel Sri.Rakesha.T.M., for Sri.H.Giridhar, learned counsel for petitioner and there is no representation for the respondent. Perused the Civil Petition papers.

2. This petition is by wife under Section 24 of CPC seeking transfer of proceedings in M.C.No.14/2023 on the file of the Senior Civil Judge and JMFC, Kalaghatagi, instituted by respondent/husband under Section 13(1-a)

(ii) and (ia) and (ib) of the Hindu Marriage Act, 1955 (for short, (for short, '1955 Act') to the Principal Judge, Family Court at Bengaluru.

3. Learned counsel would submit that marriage of the petitioner and respondent was solemnized on 28.04.2019. Subsequent to marriage, petitioner was residing with her husband at matrimonial home at Kalaghatagi. During the COVID-19 Pandemic, petitioner/wife was at her parents home at Bengaluru. The respondent/husband filed petition under Section 9 of 1955 NC: 2023:KHC:29145 Act in M.C.No.48/2021 which was disposed of on 02.01.2023. Subsequently, respondent/husband instituted M.C.No.14/2023 under Section 13(1)(ia) and (ib) of 1955 Act before the Senior Civil Judge and JMFC., Kalaghatagi. The petitioner/wife has also instituted C.Misc.No.217/2022 before the Metropolitan Magistrate Traffic Court-I at Bengaluru under Section 12 read with Section 18, 19, 20, 22 and 23 of the Protection of Women from Domestic Violence Act, 2005.

4. Learned counsel for the petitioner/wife would submit that petitioner/wife has no independent income of her own and she is residing with her parents and depending upon her parents for her livelihood. It is submitted that it would be difficult for the petitioner/wife to travel from Bengaluru to Kalaghatagi to participate in the proceedings initiated by the respondent/husband. Therefore, he prays for transferring the MC proceedings pending before the Kalaghatagi Court to the Principal Judge, Family Court at Bengaluru.

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5. Having heard the learned counsel appearing for the petitioner/wife and on perusal of the Civil Petition papers, I am of the view that petitioner would be entitled for the relief of transfer of the proceedings in M.C.No.14/2023 pending on the file of the Senior Civil Judge and JMFC, Kalaghatagi to the Principal Judge, Family Court at Bengaluru.

6. Normally, while considering transfer of petition filed under Section 24 of CPC in matrimonial cases, the inconvenience or hardship that would be caused to the wife along with status of the parties and financial position shall have to be taken note of. In the instant case, it is stated that petitioner/wife is residing with her parents and has no income of her own and depending on her parents for her livelihood. Therefore, taking note of the above facts and circumstances, I pass the following:

ORDER

- 1) Civil Petition filed under Section 24 of CPC is allowed.

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- 2) The proceedings in M.C.No.14/2023 pending on the file of the Senior Civil Judge and JMFC, Kalaghatagi is directed to be transferred to the Principal Judge, Family Court at Bengaluru for further consideration in accordance with law. In view of allowing the petition, all the pending I.As stand disposed of.

Sd/-

JUDGE NC CT:bms